

		The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions. [<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.] In this instance, the Declaration of Attorney Apodaca states, "On June 8, 2026, Defendant served its Response, asserting eleven 'General Objections' and boilerplate specific objections to every deposition topic and every document request, and refused to designate or produce any PMQ witness or any responsive document." (Decl. of Apodaca ¶4.) Thereafter, Attorney Apodaca sent two meet and confer emails on June 8, 2026 and June 12, 2026. (Id¶5,6, Ex. C, D.) Problematically, there was no attempt to meet and confer in person, telephonically, or via videoconference. Moreover, the emails do not suffice. Defendant objected to both the unilateral setting of the depo in addition to the Topics and RPDS. Yet, Plaintiff's Ex. C is a two-sentence request for a depo date. Similarly, Ex. D simply asks for dates, or it will file a motion. Conclusively, there was no attempt to narrow the issues down prior to filing this motion. Therefore, the Motion is DENIED without prejudice. Defendant's request for sanctions in the amount of \$500 is also DENIED as unsupported. The Case Management Conference is continued to September 24, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
102	Gonzalez vs. The Tjx Companies Inc, 26-01544831	Defendant Thomasina Renee Gagnon ("Defendant") moves to strike the claim for punitive damages from the Complaint of plaintiff Otto Perez Gonzalez ("Plaintiff"). Plaintiff alleges that Defendant was operating a vehicle in the course and scope of her employment with the corporate defendants at a high rate of speed while using her cell phone when she crashed into Plaintiff's vehicle. Defendant argues the claim for punitive damages and supporting allegations must be stricken because the allegations of malice and oppression are insufficient and driving while using a cell phone is not oppressive, malicious, vile, or oppressive. Defendant further argues that Plaintiff's allegations against the corporate defendants are insufficient because Plaintiff has not made any factual allegations that any officers, directors, and managing agents had advanced knowledge that

		Defendant was unfit to drive and employed her with a conscious disregard of the rights or safety of others. Nonintentional torts may form the basis for punitive damages when the conduct constitutes conscious disregard of the rights or safety of others. (<i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 158.) "Nonintentional conduct comes within the definition of malicious acts punishable by the assessment of punitive damages when a party intentionally performs an act from which he knows, or should know, it is highly probable that harm will result. [Citations.]" (<i>Ibid.</i>) Here, the allegation that Defendant was operating her vehicle at a high rate of speed while using a cell phone could support a finding that she acted with conscious disregard of the rights or safety of others and that Defendant knew or should have known that it was highly probable that harm would result from her actions. Thus, the claim for punitive damages against Defendant is adequately alleged. As to the corporate defendants, who have already answered the Complaint, Defendant has no standing to move to strike the claim for punitive damages against them. Even if she did, the Complaint alleges that defendants' officers, directors, and managing agents employed Defendant while having advanced knowledge that Defendant was unfit to operate their vehicle and lacked proper training on the operation of vehicles and intentionally disregarded this knowledge in an effort to maximize profits. These allegations must be accepted as true at this stage and satisfy the statutory requirements for a claim for punitive damages against a corporate employer. Based on the above, the Motion to Strike is DENIED. Defendant is ORDERED to file an answer to the Complaint within 10 days of the date of this order. The Demurrer and Motion to Strike filed on 3/19/26 by Defendant seeking the same relief as the instant Motion to Strike and set for hearing on 10/1/26 are taken OFF CALENDAR. <i>Moving party to give notice.</i>
103	TBF Financial I, LLC vs. O'Connell, 24-01383167	<u>Motion to Strike</u> Defendant William R. O'Connell III ("Defendant") moves to strike the entirety of Plaintiff's Second Amended Complaint ("SAC") as against himself. On November 20, 2025, this Court sustained Defendant's unopposed demurrer to the First Amended Complaint with 20 days leave to amend. Plaintiff timely filed a SAC. However, Defendant is no longer named anywhere in the pleading. Defendant's name has been removed from the caption, and there are no allegations against him anywhere within the SAC.